Michael R. Chambers
State Bar No. 132394
CARBONE, SMITH & KOYAMA
ATTORNEYS AT LAW
555 12TH STREET, SUITE 1250
OAKLAND, CA 94607-4095
(510) 267-7276
EMAIL: MICHAEL.CHAMBERS@CSAA.COM
ATTORNEYS FOR DEFENDANT
SUBHI ABDELHALIM

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco
09/14/2021
Clerk of the Court
BY: EDWARD SANTOS
Deputy Clerk

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

UNLIMITED CIVIL JURISDICTION

Franciscus Dylan Rosario, Plaintiff, v. Subhi Abdelhalim, individually, and dba Sonoma Liquor, Defendants.	Case No. CGC-21-594102 **ANSWER TO COMPLAINT**

COMES NOW defendant Subhi Abdelhalim and answers the complaint on file herein as follows:

1. Under the provisions of Section 431.30 of the Code of Civil Procedure of the State of California, this answering defendant generally denies each and every allegation of the complaint, and the whole thereof, and further denies that plaintiff has been or is now or will be damaged to the extent alleged or to any other extent.

AS AND FOR FURTHER, SEPARATE AND DISTINCT AFFIRMATIVE DEFENSES, ANSWERING DEFENDANT AVERS:

FIRST AFFIRMATIVE DEFENSE

2. The incident or incidents complained of by plaintiff herein were caused, in whole or in part, by the negligence of the plaintiff. Any recovery by plaintiff in this case must be reduced by that percentage of the plaintiff's negligence which contributed to the incident or

incidents.

SECOND AFFIRMATIVE DEFENSE

3. Plaintiff failed to use reasonable care to mitigate, in whole or in part, the damages alleged in the complaint.

THIRD AFFIRMATIVE DEFENSE

4. Damages complained of by plaintiff herein were caused, in whole or in part, by acts and omissions of persons other than this answering defendant, which other persons may or may not be named as defendants in this action. This answering defendant should only be required to pay that portion of the plaintiff's damages attributable to this answering defendant pursuant to Civil Code sections 1431.2 and/or 1432.

FOURTH AFFIRMATIVE DEFENSE

5. The complaint and/or causes of action therein are barred by the applicable statute of limitations, specifically including but not limited to California Code of Civil Procedure sections 335.1; 337; 338(a),(b),(c),(d) and (j); and 339.

FIFTH AFFIRMATIVE DEFENSE

6. Defendant is informed and believes, and thereon alleges, that at the time of the incident which is the subject of this action plaintiff was not insured as required by the state's financial responsibility laws, and/or that plaintiff was driving in violation of Vehicle Code section 23152 and/or 23153 for which violation(s) plaintiff was convicted. Therefore, plaintiff's recovery, if any, must be limited to economic damages pursuant to Civil Code section 3333.4.

SIXTH AFFIRMATIVE DEFENSE

7. The complaint and/or causes of action therein fail to state facts sufficient to constitute a cause of action against this answering defendant.

WHEREFORE, defendant prays:

1. That plaintiff takes nothing;
2. For costs of suit herein; and
3. For such other and further relief as the Court deems just and proper.

DATED: September 13, 2021 CARBONE, SMITH & KOYAMA

Michael R. Chambers
Attorneys for Defendant Subhi Abdelhalim

Rosario v. Abdelhalim
San Francisco County Superior Court
Case No. CGC-21-594102

PROOF OF SERVICE

I, Meredith Miller, am a citizen of the United States and employed by the office of Carbone, Smith & Koyama located at 555 12th Street, Suite 1250, Oakland, CA 94607-4095. I am over the age of 18 years and am not a party to this action.

On the below date, I served the accompanying ANSWER TO COMPLAINT on the parties in said action addressed as follows:

Kimberly E. Levy, Esq.
Jeremy M. Jessup, Esq.
Dolan Law Firm, PC
1438 Market St
San Francisco, CA 94102-6004
Attorney for Plaintiff
415-421-2830
kimberly.levy@dolanlawfirm.com, jeremy.jessup@dolanlawfirm.com

☒ **BY ELECTRONIC TRANSMISSION:** Pursuant to California Code of Civil Procedure section 1010.6(e)(1), effective September 18, 2020, or an agreement of the parties to accept service by electronic transmission, I caused the document(s) to be electronically sent to the persons at the email address(es) indicated on the above list. I did not receive, within a reasonable time after the transmission, any electronic message or other indication that the transmission was unsuccessful.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct. I declare that I am employed in the offices of a member of the bar of this court at whose direction the service was made.

Dated: September 14, 2021

Meredith Miller